

26VECV03573 26VECV03573

County: los-angeles

Division: Civil Law and Motion

Department: T

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26VECV03573 Ardi v Donen

Ex parte application for writ of attachment or TRO: Denied without prejudice. The court is unwilling to enter an attachment order which service of the summons and complaint, service of the attachment papers, and proper notice.

According to the declaration of Mr. Rodich, "the only known contact information for" defendants are email addresses and phone numbers. This is after the plaintiffs indicated that they have done millions of loans with the defendants. There is no evidence of a skip search. Plaintiffs do not state they have no addresses for the defendants. A business is identified for the defendants but no attempts to serve were made there. There is no evidence of an index check to see if the defendants have other litigation pending. Strangely, Mr. Rodich's declaration states that defendants have listed their residence for sale, indicating a residence address. No attempts were made to serve them there. Ryan Ardi discusses the "continued liquidation of assets" yet there is no information about how this is known. Richard Ardi mentions that the defendants are in a contentious divorce and yet there is no information on that filing, whether they are represented by counsel, or whether their address appears in that file. Furthermore, there is no documentary evidence that these were commercial loans rather than individual loans. The court notes that money was paid out of an Ardi trust rather than an individual, and the trust is not a party to this lawsuit. The court notes also that the property on Capstan is known to the plaintiffs but there is no mention of any attempt to serve there, despite it being "owner occupied." There is also an address for Elizabeth Donen on Via Alondra in Camarillo with no attempted service. Further, there is an issue as to who the legal owners are of the properties sought to be attached as the Adohr property is listed as purchased by the Donen Family Living Trust which is not a defendant. No current deeds were provided. Finally, it should be noted that in divorce proceedings, there is an automatic temporary restraining order for the parties to not encumber or sell assets which may be in effect.

Based upon all these concerns, the court is unwilling to grant this on ex parte application and so it is denied without prejudice. The court will consider this on a properly noticed motion after the court acquires jurisdiction over the defendants.